

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 13.12, SEWER SYSTEM, OF TITLE 13, PUBLIC SERVICES, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO ALLOW FOR EXCEPTIONS TO SEWAGE DISPOSAL REQUIREMENTS.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections of Chapter 13, Sewer System of Title 13, Public Services, of the code of the City of Cheyenne, Wyoming, are hereby amended as set out in this ordinance. Sections currently existing in Chapter 13 not set out within this ordinance remain unchanged.

13.12.020 - Sewer connection required.

All occupied property in the city ~~which~~that is capable of being served by the sanitary sewer system shall be connected with the system. A written or printed notice to connect with the system shall be given by the city health officer to all owners or occupants of properties which are not connected with the system, but which are capable of being connected therewith, and unless the time for connection is extended by the governing body, all connections shall be made within thirty (30) days after the mailing of a notice. Notwithstanding the requirements imposed by this section, an occupied property in the city that is capable of being served by the sanitary sewer system may be granted a connection exception by the governing body.

13.12.040 - Outhouses and cesspools declared nuisances - Abatement of same.

All outhouses, septic tanks, cesspools, and all means of sewage disposal other than the city sewer system are declared to be nuisances endangering the peace, health, and lives of the inhabitants of the city and must be abated. The board shall take such steps as may be necessary to abate such nuisances. Notwithstanding the requirements imposed by this section, an abatement exception may be granted to the property for septic systems and permitted systems by the governing body upon the governing body determining that the exception will conform with the criteria of subsection 4.1 of city contract #2076 regarding implementation of the findings of the 201 Facilities Plan Final Report.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle